

Amendment No. 1 to SB2109

White
Signature of Sponsor

AMEND Senate Bill No. 2109

House Bill No. 1888*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 5, Part 1, is amended by adding the following as a new section:

49-5-117. Waiver of educator licensure requirement for certain individuals.

(a) Notwithstanding another law to the contrary, after a director of schools or a director of a public charter school notifies the local board of education or the governing body of the public charter school, as applicable, that the LEA or public charter school is unable to secure a qualified teacher with a valid license for the type and kind of school in which a vacancy exists, the director of schools or the director of the public charter school may certify the same to the state board of education. Upon the state board's receipt of the certification, the state board may waive for an individual who does not hold a bachelor's degree from an accredited four-year institution, but who is recommended by the director of schools or the director of the public charter school, as applicable, the requirement that the individual possess a license issued by the department of education in order to teach in the public schools of this state, if:

(1) The applicant has a minimum of ten (10) consecutive years of full-time teaching experience at a private school, as defined in § 49-6-3001(c)(3)(A), that is a category I, II, or III school approved by the commissioner of education in accordance with rules promulgated by the state board;

(2) The applicant provides to the state board:

(A) Written verification from the chief administrator of the private school at which the applicant obtained the teaching experience described in subdivision (a)(1) attesting to the applicant's satisfactory performance and effectiveness in the classroom;

(B) Documentation evidencing the applicant's performance of instructional duties that are substantially similar to those required of licensed educators teaching in the public schools of this state; and

(C) Evidence of the applicant's completion of professional development training during the period for which the applicant obtained the ten (10) years of teaching experience described in subdivision (a)(1);

(3) The applicant agrees in writing to complete, during the period for which a waiver of the licensure requirement is issued, training conducted by the LEA or public charter school, in accordance with the state board's rules, in the subjects of classroom management, serving students with disabilities and English language learners, and the teacher code of ethics;

(4) The applicant is assigned a mentor teacher by the director of schools or the director of the public charter school and works with the mentor teacher in accordance with requirements established by the state board; and

(5) The applicant agrees to release their investigative records to the employing LEA or public charter school and to supply a fingerprint sample and submit to a criminal history records check to be conducted by the Tennessee bureau of investigation and the federal bureau of investigation in same manner required of persons who apply for or hold a position as a teacher or any other position requiring proximity to school children pursuant to § 49-5-413.

(b) An educator licensure waiver granted pursuant to this section:

(1) Allows the individual to be employed by an LEA or public charter school as a teacher for a period not to exceed three (3) years, unless the waiver is renewed by the state board;

(2) Does not grant the individual a practitioner teacher license;

(3) Does not allow the individual to serve as a principal, assistant principal, instructional leader, or in any other administrative or supervisory role;

(4) Does not allow the individual to teach a special education course or a course for which an end-of-course examination is required; and

(5) Requires the employing LEA or public charter school to provide annual performance evaluations for the individual pursuant to § 49-1-302(d).

(c) The state board shall establish the:

(1) Review process for applications submitted pursuant to this section;

(2) Criteria for evaluating the instructional effectiveness and professional competency of individuals who apply for or receive an educator licensure waiver;

(3) Requirements for enrollment in an educator preparation program for an individual who receives an educator licensure waiver pursuant to this section, if the board deems the completion of such a program appropriate; and

(4) Conditions under which an educator licensure waiver may be renewed or revoked.

(d) This section does not prohibit an applicant from pursuing any other educator licensure pathway established or authorized by the state board.

SECTION 2. Tennessee Code Annotated, Section 49-5-101(a), is amended by designating the existing language as subdivision (1) and adding the following as a new subdivision (2):

(2) Notwithstanding subdivision (a)(1), a person who does not possess a valid license to teach in the public schools of this state, but who has received a waiver of the licensure requirement by the state board of education pursuant to § 49-5-117, may be

employed as a teacher in a public school of this state and may receive pay for providing such services out of the public school funds of the LEA or public charter school.

SECTION 3. Tennessee Code Annotated, Section 49-5-403(a), is amended by designating the existing language as subdivision (1) and adding the following as a new subdivision (2):

(2) Notwithstanding subdivision (a)(1), a person who does not possess a valid license to teach in the public schools of this state, but who has received a waiver of the licensure requirement by the state board of education pursuant to § 49-5-117, may be employed as a teacher in a public school of this state and may receive pay for providing such services out of the public school funds of the LEA or public charter school.

SECTION 4. Tennessee Code Annotated, Section 49-6-201(b)(4), is amended by adding "unless the teacher is granted a waiver pursuant to § 49-5-117" after "state board of education".

SECTION 5. Tennessee Code Annotated, Section 49-6-404, is amended by adding ", unless the teacher is granted a waiver pursuant to § 49-5-117" after "teach those subjects".

SECTION 6. The state board of education is authorized to promulgate rules to effectuate this act in accordance with the Uniform Administrative Procedures Act, compiled in Tennessee Code Annotated, Title 4, Chapter 5.

SECTION 7. For purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.